

26SMCV01409 26SMCV01409

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26SMCV01409 Hearing Date: July 16, 2026 Dept: M

CASE NAME: Fisher, et

al., v. 212 S. Carmelina Ave. LLC, et al.

CASE NO.: 26SMCV01409

MOTION: Writ of Attachment

HEARING DATE: 7/16/2026

Legal

Standard

An application for a writ of attachment shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The application shall be supported by an affidavit showing that the plaintiff on the facts presented will be entitled to a judgment on the claim. (CCP § 484.030.) The Court shall issue a

right to attach order if the Court finds all of the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued. (2) The plaintiff has established the probable validity of the claim upon which the attachment is based. (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based. (4) The amount to be secured by the attachment is greater than zero. (CCP § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (CCP § 481.190.) In determining the probable validity of a claim where the defendant makes an appearance, the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (Loeb & Loeb v. Beverly Glen Music, Inc. (1985) 166 Cal.App.3d 1110, 1120; see *Epstein v. Abrams* (1997) 57 Cal.App.4th 1159, 1168 [attachment law strictly construed].)

ANALYSIS

Plaintiff Damon R. Fisher and Elizabeth C. Fisher seek a writ of attachment against Defendant 212 S. Carmelina Avenue, LLC, (“Seller”) in the amount of \$1,300,000.00.

Evidentiary Issues

Seller's

objections are SUSTAINED as to nos. 21-22, 27-38, 43-44, 48, 50, 55-56, and OVERRULED as to the remainder.

Plaintiffs' objections to the H.

Klien declaration are SUSTAINED as no. 3. Plaintiffs' objections to the M.

Klien declaration are SUSTAINED as no. 3. The remainder of Plaintiffs' objections are OVERRULED.

Probable Validity

In support

of the probable validity of their claims, Plaintiffs explain that on February 14, 2025, Plaintiffs entered into a written Residential Purchase Agreement and

related addenda (collectively, the "Agreement") with Seller for the purchase of the residence to be constructed at 212 S. Carmelina Avenue, Los Angeles, California 90049 (the "Property") with a purchase price of \$12,000,000. (Fisher Decl. ¶ 2.) Plaintiffs paid a deposit of \$1,200,000 to Seller that same day. (Id., ¶ 3.) The Agreement provides that if completion did not occur by December 31, 2025 (the "Outside Date"), Plaintiffs could terminate by written notice, whereupon Seller was obligated to promptly return the deposit with interest. (Id.) It is undisputed that completion did not occur by the Outside Date. (Id., ¶ 4.) On January 8, 2026, Plaintiffs gave written notice of termination and demanded return of the Deposit with interest. (Id., ¶ 5.) Seller failed and refused to return the Deposit or pay any interest. (Id. ¶ 6.) Seller is a single purpose entity for the

purpose of constructing a single family residence on the Property, and selling it. (CC ¶ 7.) Without turning to the merits of the cross-claims, this evidence presents a contract claim for a

fixed amount of \$1.2 million.

Plaintiffs note that the instant controversy is covered by an arbitration agreement. CCP section 1281.8(b) provides that a party to an arbitration agreement may apply to the court for provisional relief in connection with an arbitrable controversy, but only upon the ground that the award "may be rendered ineffectual without provisional relief." The requirements of CCP section 1281.8 are in addition to the other elements of proof for provisional relief. (*Woolley v. Embassy Suites, Inc.*, (1991) 227 Cal.App.3d 1520, 1529.) The "ineffectual" element exists to ensure that the court does not invade the province of the arbitrator. (*California Retail Portfolio Fund GMBH & Co. v. Hopkins Real Estate Group*, (2011) 193 Cal.App.4th 849, 856.) Thus, the court is only empowered to grant provisional relief where the arbitrator's award may be inadequate to make the moving party whole. (Id.) In the context of attachment, the irreparable harm requirement for ex parte attachment provides guidance on the issue of, and is similar to, ineffectual relief under section 1281.8. (Id. at 859.) An award may be "ineffectual" if defendant is insolvent or is unable to otherwise pay damages that might be awarded. (*Ibid.*)

Plaintiffs failed to demonstrate that an eventual arbitration award would be rendered ineffectual without the sought attachment order. Plaintiff does not present

strong evidence of Seller's insolvency, or that Seller will be unable to pay the amount sought. Plaintiff only presents evidence that principal of Seller, Hal Klein, told him on multiple occasions, that: (1) Klein knows he owes Plaintiffs the full Deposit plus interest; (2) he is presently unable to pay; and (3) he intends to repay Plaintiffs if and when Fountainhead sells certain of its properties, including the Property at 212 S. Carmelina Avenue. (Fisher Decl. ¶ 15.) Further, Plaintiffs present evidence that the deposit was diverted to other Fountainhead expenses and was never used for this project, and that Seller and Fountainhead are "significantly cash-constrained." (Id., ¶¶ 12-13.) This bare and vague admission that Seller is cash constrained does not strongly support an inference that Seller is insolvent. Even if Seller is cash constrained, the evidence shows that Seller still owns the subject property which may be sold to pay any future award. Plaintiffs present no substantial evidence that, absent attachment, the Seller will sell the Property and render itself insolvent or unable to pay its debt by transferring or other dissipating the proceeds before conclusion of this action. Thus, the record does not support a finding that, absent attachment, an award will be rendered ineffectual.

Accordingly, the writ is DENIED.